

RESIDENTIAL TENANCY AGREEMENT

THIS AGREEMENT MADE IN DUPLICATE ~~THIS~~ ~~DAY OF~~
dated:[Date to be entered digitally]

BETWEEN:

★

OF THE FIRST PART
(hereinafter called the "Landlord")

- and -

★

(hereinafter either individually
or collectively called the "Tenant")
OF THE SECOND PART

1. PREMISES

The Landlord hereby leases to the Tenant the residential premises described as follows:

★

(hereinafter called the "Premises")

subject to the terms and conditions hereinafter set forth.

2. USE

The Tenant shall only use and occupy the premises as a resident.

3. TERM AND TERMINATION

This Agreement shall constitute a periodic tenancy and shall be for a primary term commencing at 12:00 o'clock noon on the
[Commencement date] ing at 12:00 o'clock noon on
[End date] extended terms of one
month each from month to month thereafter until terminated by

either the Landlord or the Tenant in accordance with the following provisions:

- a) The Landlord may terminate the Tenancy by serving a written notice of termination on the tenant **ON OR BEFORE THE LAST DAY OF ONE MONTH OF THE TENANCY TO BE EFFECTIVE ON THE LAST DAY OF THE THIRD CONSECUTIVE MONTH FOLLOWING THE DATE OF SERVICE OF THE NOTICE.**
- b) The Tenant may terminate the tenancy by serving a written notice of termination on the Landlord **ON OR BEFORE THE LAST DAY OF ONE MONTH OF THE TENANCY TO BE EFFECTIVE ON THE LAST DAY OF THE FOLLOWING MONTH OF THE TENANCY.**

4. **RENT**

The Tenant shall pay monthly, in advance, to the Landlord at _____, the rental of \$_____ dollars per month on the first day of each and every month of the term of this Agreement. (The rent shall be pro-rated as required.)

5. **UTILITIES AND SERVICES**

The rent for which provision is made in clause 4 of this Agreement shall be deemed not to include the cost of all utilities and services customarily supplied to the premises and the Tenant hereby agrees to pay to the appropriate authority or authorities the cost of the following utilities and services:

*
*
*
*
*

6. **APPLIANCES**

The Landlord agrees that throughout the term of this Agreement, the Landlord will supply to the Tenant, at the sole cost of the Landlord, the following items:

*
*
*
*
*

7. **OTHER OCCUPANTS**

The Tenant agrees that in addition to the Tenant, the premises may be occupied only by the following other persons:

- 1.
- 2.
- 3.

Together, with any natural increase in the Tenant's family, but in any event not exceeding a total of ____ persons, unless the Landlord consents in writing to the occupation of the premises by some other or an additional person or persons.

8. **SECURITY DEPOSIT**

The Tenant agrees to pay to the Landlord a security deposit of \$____ dollars (the security deposit shall not exceed the equivalent of one month's rent pursuant to this Agreement.) Receipt of the foregoing security deposit is hereby acknowledged by the Landlord. The Landlord may deduct from the security deposit any amount that the Landlord deems necessary to provide for:

- a) Repairing any damage to the premises (including the grounds of which the building forms a part);
- b) Repairing fixtures, furniture, appliances and any other items leased pursuant to this Agreement, which damage may have been caused by the Tenant or any person or persons invited on the premises by the Tenant, normal wear and tear excepted;
- c) Cleaning the premises, if the Tenant gives up possession of the premises in such condition that the premises require cleaning, normal wear and tear excepted;
- d) Payment of rent owing to the Landlord by the Tenant upon the termination of this Agreement; and
- e) The discharge of any other obligations or liabilities of the Tenant to the Landlord.

Except as indicated above, no deductions shall be made from the security deposit supplied by the Tenant to the Landlord pursuant to this Agreement.

Interest on the security deposit will be compounded annually at the rate specified by the Residential Tenancies Act of Alberta and paid to the Tenant on the termination or expiration of the Tenancy.

9. **CONDITION OF PREMISES**

The Landlord and Tenant hereby agree that the Landlord (or the Landlord's agent, if any) and the Tenant (or the Tenant's agent, if any) will inspect the premises at the commencement of the Tenancy and upon surrender of possession at or following the expiration of the Tenancy and that the condition of the premises at the aforesaid times will be noted on an "Accommodation Inspection Report" in the form as attached to this Agreement. The Accommodation Inspection Report shall be signed by the parties performing this inspection. In the event that either the Landlord (or the Landlord's agent, if any) or the Tenant (of the Tenant's agent, if any) fails to inspect the premises or sign the Accommodation Inspection Report as herein required, it is agreed that an Accommodation Inspection Report which is completed by the other party or its agent and is signed by the other party or its agent in the presence of a witness not related to or affiliated in business with the person signing the Accommodation Inspection Report shall be binding on the party not inspecting the premises or signing the Accommodation Inspection report as required in this clause and may be used as proof of the condition of the premises at the times indicated in this clause and in determining the appropriateness of any deductions taken by the Landlord from the security deposit in accordance with clause 8 of this Agreement.

10. **CARE OF PREMISES**

- a) The Landlord hereby agrees that the premises supplied to the Tenant by the Landlord at the commencement of the term of this Agreement shall be in a reasonably good state of repair and reasonably clean and that insofar as the Landlord is responsible for the maintenance of the premises pursuant to this Agreement, they will be maintained in a reasonably good state of repair, notwithstanding that the premises may have been in a state of disrepair to the Tenants knowledge prior to the date upon which this Agreement was entered into. The Landlord also covenants that any item supplied to the Tenant pursuant to clause 6 of this Agreement shall be

in good working order and capable of full enjoyment by the Tenant.

- b) The Tenant hereby agrees to take good care of the premises and keep them in reasonably clean condition and to take care of any items supplied to the Tenant by the Landlord pursuant to clause 6 of this Agreement.

11. **MAINTENANCE COSTS**

The Tenant shall be responsible for:

- a) The costs of repairing plugged toilets, sinks and drains; and
- b) The costs of replacing or repairing all windows, screens, mirrors, light fixtures, and appliances damaged, broken, removed, or destroyed at any time during the Tenancy; and
- c) Replacing light bulbs and fuses.

12. **TENANTS INSURANCE**

It shall be the responsibility of the Tenant to insure the Tenant's property on the premises against damage or loss to such property occasioned by fire, theft and any other perils which cause such damage or loss.

13. **TRANSFER**

Notwithstanding any provision, either express or implied, to the contrary in this Agreement, in the event that the Tenant is at any time transferred by the Tenant's employer from the City or Town in which the premises are located, the Tenant may terminate this Agreement by complying with both of the following conditions:

- a) By providing the Landlord with proof of the Transfer; and
- b) By providing the Landlord with written notice of termination of the tenancy on or before the last day of a rental period. To be effective on the last day of the next rental period.

14. **BEHAVIOUR**

The Tenant will not cause and the Tenant will ensure that the family and guests of the Tenant do not cause a nuisance or disturbance to other Tenants, if any, in the same building in which the premises are located.

15. **ABANDONMENT**

Should the Tenant fail to take possession of the premises at the commencement of the term of this Agreement, or abandon the premises before the termination of this Agreement, the Landlord may take possession without notice or demand and relet the premises on such conditions as the Landlord may deem advisable, without prejudice to the Landlord's right to recover rental which may be owing and without prejudice to any claim or claims for damages.

16. **RULES AND REGULATIONS**

The Tenant will observe and comply with the Landlord's rules and regulations which are attached to and shall be read as forming part of the terms and conditions of this Agreement with such reasonable variations and modifications as may be made to such rules and regulations from time to time by way of reasonable written notice from the Landlord to the Tenant.

17. **LIABILITY FOR RENT**

When two or more persons comprise the Tenant for the purposes of this Agreement, the Landlord may collect the rent due to the Landlord pursuant to this Agreement from any one, some or all of them.

18. **RIGHT OF ENTRY**

The Landlord shall have the right to enter the premises:

- a) Without notice or consent in the case of an emergency or in the event that the Tenant has abandoned the premises;
or
- b) After giving written Twenty-Four (24) hours notice to the Tenant;
 - i) To inspect the state of repair of the premises;

- ii) To make repairs to the premises;
- iii) To show the premises to prospective purchasers or mortgagees of the premises; or
- iv) To show the premises to prospective Tenants after a Notice of Termination has been served.

19. **QUIET ENJOYMENT**

The Landlord hereby acknowledges that in executing this Agreement, the Landlord is exercising the Landlord's lawful power, and in so executing, grants the Tenant the right of full use and occupation of the premises with such security of tenure as is provided pursuant to this Agreement.

20. **OBSERVANCE OF LAWS**

Such requirements as are and may be enacted in law with respect to the relationship between Landlords and Tenants and with respect to such matters as health, sanitation, fire, housing and safety standards shall be observed by both the Landlord and the Tenant.

21. **TENANT'S COPY OF THE AGREEMENT**

The Landlord shall deliver to the Tenant a duplicate copy of this Agreement signed by the Landlord within twenty (20) days after execution of this Agreement by the Tenant and return of this Agreement to the Landlord for execution. Where a copy of this Agreement is not delivered within the time specified, the Tenants may withhold payment of rent.

22. **ASSIGNMENT**

The Tenant agrees and acknowledges that the Tenant is not permitted to assign, transfer or sublet this lease, or the premises hereby demised, without the consent in writing of the Landlord first obtained, and notwithstanding any act or rule of law or regulation now or hereinafter in force to the contrary. The Landlord may in its discretion withhold such consent.

23. **CHANGE IN OWNERSHIP**

The Landlord will advise the Tenant of any change of ownership of the premises within seven (7) days of the change.

24. **RESIDENTIAL TENANCIES ACT**

Any item or condition added to this Agreement that contravenes any of the provisions of the Residential Tenancies Act S.A. 2004, c.R-17.1, as amended from time to time, is void and of no force and effect.

25. **HEADINGS**

The headings in this Agreement are inserted for convenience of reference only and shall not effect the construction of this Agreement.

26. **ADDITIONAL PROVISIONS**

- a) The Tenant shall provide the Landlord with eleven (11) post dated cheques for rent if requested and in the event any adjustment is required for rent, it shall be paid within seven (7) days by the Tenant upon demand.
- b) If the family composition of the Tenant should change, the Landlord may at its option require the Tenants to move to a more appropriate size unit.

27. **FORFEITURE**

It is agreed by the parties hereto that if at any time the rent or any part thereof shall remain unpaid for seven (7) days after becoming due, or if any Tenant's covenants shall not be performed or observed, then the Landlord may at any time thereafter re-enter upon the premises, or any part thereof in the name of the whole, and relet the premises as agent for the Tenant and receive the rent for such reletting and agent for the Tenant, may take possession of any furniture and other property on the premises belonging to the Tenant and sell it at public or private sale without notice and apply the proceeds of such sale and any rent from such reletting on account of the rent due under this lease and the Tenant shall remain liable to the Landlord for any deficiency.

28. **ENUREMENT**

This Agreement shall extend to, be binding upon and enure to the benefit of the heirs, executors, administrators, successors and assigns of each party hereto.

IN WITNESS WHEREOF

The parties hereto have executed this Agreement digitally.

LANDLORD

Name: _____

Signature: _____

Date: _____

TENANT

Name: _____

Signature: _____

Date: _____

Both parties attest that this digitally signed document is legally binding and enforceable as if signed in person.

RECEIPT OF RENTAL AGREEMENT

The Tenant hereby acknowledges receipt of a copy of this Agreement.

Date: _____

RULES AND REGULATIONS

1. The Tenant shall dispose of all garbage from the premises in a proper manner.
2. The Tenant shall use the yard, entrance and walks in a proper manner and shall keep all walks, yards and garbage disposal areas from which the Tenant is responsible, clean and tidy at all times, free of all objectional material, including ice and snow.
3. If windows are left open on the premises by the Tenant or by any person invited on the premises by the Tenant, causing plumbing to freeze, damage by rain or water or damage to floors or walls, the Tenant shall be responsible for any damage occasioned by such action.
4. The Tenant agrees to immediately report to the Landlord any and all damage that may occur to the premises throughout the continuance of the Tenancy.

5. Only small picture hooks and small nails may be used for the hanging of pictures in the premises.

6. The Tenant shall be responsible for replacing glass with glass of a kind and quality similar to that which may be broken, cracked or damaged due to the negligence or wilful misconduct of the Tenant or any other person or persons invited on the premises by the Tenant.

7. No structural alterations, painting, papering or re-decorating shall be done by the Tenant without the prior consent of the Landlord.

8. Neither the Tenant nor the Landlord shall add to or change locks and doors giving access to the premises without the prior written consent of the other party.

9. A Tenant must keep and observe all health, fire and police regulations of the Province and City in which the premises are located.

10. No additional electric wiring or heating units shall be installed in the premises without the written approval of the Landlord.

11. No combustible material or flammable liquid shall be kept in the premises except in small quantities and in containers approved for this purpose.

12. If the Tenant is absent from the premises and the premises are unoccupied for an extended period, the Tenant is to arrange for regular inspection of the premises by a competent person.

13. The Tenant must obtain in writing the approval of the Landlord before a waterbed or waterbeds are used on the premises.

14. Noise shall not be permitted in the premises which, in the opinion of the Landlord, disturbs the comfort of other Tenants or neighbours.

15. No animals of any sort shall be allowed or kept in or about the premises.

16. The Tenant will not leave guests in charge of the premises or have guests stay longer than one week without written notification to the Landlord and receiving written approval from the Landlord.

17. The Tenant shall not place or expose or allow to be placed or exposed anywhere on the premises within or without, any placard, notice, plate or sign for advertising purposes, nor shall the Tenant affix to the premises or erect thereon any radio or T.V. antenna or towers without prior written consent of the Landlord.

18. The Tenant and Landlord agree the property is designated as a smoking/vaping/smudging free zone and the tenant will prohibit guests and visitors from smoking/vaping/smudging in the unit or on the property as well.

The Foregoing has been read and is hereby acknowledged by the Tenant, **Date:** _____

Tenant

Tenant